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RETURNING RESIDENT VISA



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RETURNING RESIDENT VISA

If you previously had indefinite leave to remain (ILR) in the UK, also known as settlement in the UK, and this has now lapsed, you may be eligible to return to the UK to settle on the basis of a Returning Resident visa.

An application for a Returning Resident visa must be made from outside the UK.

If your application for a Returning Resident visa is successful, you will be granted entry clearance for settlement in the UK.

Returning Resident Visa Requirements

The requirements that you will need to satisfy in order to be admitted to the UK for settlement as a Returning Resident are:

- You are outside the UK;
- You were previously granted settlement in the UK;
- Your previous settlement in the UK has lapsed due to your absence from the UK;
- You genuinely intend to return to the UK for the purpose of settlement;
- You have maintained strong ties to the UK during your absence from the UK;
- You did not receive public funds towards the cost of leaving the UK (unless applying under the Windrush Scheme);
- Your application does not fall for refusal under the general grounds for refusal;
- You have a valid TB certificate, if required;
- If under 18, you have written consent from either both parents, one parent (if that parent has sole legal responsibility for you) or a legal guardian.

The exact requirements you will need to satisfy in order to qualify for a Returning Resident visa may vary depending on your personal circumstances. You may want to speak to an immigration lawyer for expert advice.

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To discuss your Returning Resident visa application with one of our immigration barristers, contact our Returning Resident visa lawyers on 0203 617 9173 or enquiries@frimond+chambers+in complete our enquiry form below.

When does indefinite leave to remain or settlement in the UK lapse?

Your indefinite leave to remain will have automatically lapsed by operation of law if you held ILR status but were subsequently absent from the UK for a continuous period of:

- More than 2 years under the Immigration (Leave to Enter and Remain) Order 2000; or
- More than 5 years, if you previously had settlement in the UK under the EU Settlement Scheme; or
- More than 4 years, if you previously had settlement in the UK under the EUSS as a Swiss national or a family member of a Swiss national.

Does a Returning Resident need to have had indefinite leave to enter or remain when they last left the UK?

There is no requirement that an applicant had indefinite leave to enter or remain in the United Kingdom when they last left the UK. Therefore, it is possible to make an application for a Returning Resident visa even if you visited the UK since your leave lapsed.

How can I demonstrate that I have maintained strong ties to the UK?

As part of your Returning Resident visa application, when assessing whether you have maintained strong ties to the UK during your absence from the UK, the Home Office will consider the following:

- Your family ties in the UK;
- Your property and business ties in the UK;
- The length of your original residence in the UK;
- The length of time you have spent outside of the UK;
- Your reasons for leaving and wishing to return to the UK; and
- Any other circumstances.

Home Office guidance also acknowledges that there ‘*may be other compelling or compassionate circumstances*’ and confirms that each application ‘*must be considered on its individual merits*’.

Given the various factors, and the discretionary nature of the assessment, you may wish to seek legal advice when considering the evidence that you may wish to rely upon and how best to present it.

Can a Returning Resident be accompanied or joined by a dependent?

Returning Resident visa applicants cannot automatically bring or be joined by a partner or children on this route. Each family member must qualify as either a Returning Resident, or in some other capacity, in their own right. [. \(https://www.google.co.uk](https://www.google.co.uk)

You will therefore need to consider potential applications that a partner or children may be able to make. You may wish to seek legal advice in this regard.

What if my Returning Resident visa application is refused?

If your application for a Returning Resident visa is refused, there is no right of appeal, but the decision may be open to being challenged by way of an application for Administrative Review (<https://immigrationbarrister.co.uk/personal-immigration/immigration-appeals/uk-visa-administrative-review/#:~:text=To%20discuss%20your%20administrative%20review,complete%20our%20e>

What if I cannot satisfy the requirements for a Returning Resident visa?

In the event that you cannot meet the requirements to enter the UK as a Returning Resident, but you have previously spent a continuous period of 10 years lawfully in the UK, you may be able to enter on another basis and then submit a **Long Residence** (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/long-residence-ilr/>) application.

How Our Immigration Barristers Can Help

Our immigration barristers regularly assist foreign nationals whose previous indefinite leave to enter or remain has now lapsed and who now wish to settle in the UK on the basis of a Returning Resident visa.

Whether you require expert advice on the requirements of the Immigration Rules for Returning Residents, an independent assessment of your prospects of qualifying for a Returning Resident visa or professional assistance with preparing a UK Returning Resident application or **Administrative Review** (<https://www.gov.uk/ask-for-a-visa-administrative-review>), our immigration barristers can help.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to Returning Residents as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

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Making a Subject Access Request to the Home Office

(<https://www.google.co.uk/q=richmond+chambers+in>)

Applications for ILR on grounds of Long Residence

Fresh applications and Administrative Reviews for Returning Residents

WHAT CAN WE HELP YOU WITH?

To discuss your application for a Returning Resident visa with one of our immigration barristers, contact our Returning Resident visa team on 0203 617 9173 or complete our enquiry form.

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(<https://immigrationbarrister.co.uk/proving-strong-ties-returning-resident-visa-applications/>)

By Richmond Chambers -

24 Feb 2025

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By Annie Ee - Senior Legal Associate

20 May 2024

The Returning Resident Visa is for individuals whose previous settlement in the UK has lapsed and who now wish to return to the UK to settle. Appendix Returning Resident of the Immigration Rules sets out the...

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Update on Returning Resident Visa Rules (October 2023)

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By Alexandra Pease - Barrister Partner

03 Nov 2023

In September 2022, we presented a comprehensive guide on the 'UK Returning Resident Visa' in two parts, Part 1 and Part 2. These posts shed light on the intricacies of returning to the UK for those whose...

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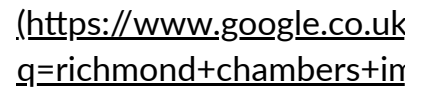
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